

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

-----X
MALIK DIXON,

Plaintiff(s),

Plaintiff designates
Bronx County
the place of trial

-against-

The basis of venue is
location of incident

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER JOHN DOE # 1, NEW YORK CITY
POLICE OFFICER JOHN DOE # 2 and NEW YORK
CITY POLICE OFFICER JOHN DOE # 3,

Defendant(s).

SUMMONS

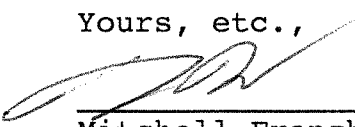
Plaintiff resides at:
2616 Third Avenue
Bronx, NY 10454

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To the above named Defendant(s)

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorneys within 20 days after the service of this summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, New York
May 30, 2024

Yours, etc.,



Mitchell Franzblau, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
Office & P. O. Address
1937 Williamsbridge Road
2nd Floor, Suite B
Bronx, New York 10461
(718) 655-2900

Defendant(s) Address(es):

CITY OF NEW YORK
100 Church Street
New York, NY 10007
NEW YORK CITY POLICE OFFICER "JOHN DOE # 1"
100 Church Street
New York, NY 10007

NEW YORK CITY POLICE OFFICER "JOHN DOE # 2"

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE OFFICER "JOHN DOE # 3"

100 Church Street

New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MALIK DIXON,

Plaintiff(s),

-against-

VERIFIED COMPLAINT

Index No:

CITY OF NEW YORK, NEW YORK CITY POLICE
OFFICER JOHN DOE # 1, NEW YORK CITY
POLICE OFFICER JOHN DOE # 2 and NEW YORK
CITY POLICE OFFICER JOHN DOE # 3,

Defendant(s).
-----X

Plaintiff, by and through his attorneys, **BELOVIN FRANZBLAU & ASSOCIATES, PC**, as and for a verified complaint, respectfully allege as follows:

1. That all the times hereinafter mentioned, plaintiff was, and still is, a resident of the City and State of New York, County of Bronx.

2. At all the times herein, the defendant, **CITY OF NEW YORK**, was, and still is a duly licensed Municipal Corporation authorized to transact business in the City of New York, County of Bronx.

3. Upon information and belief, the defendant, **CITY OF NEW YORK**, employed, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, who were herein duly employed and acting New

York City Police Officers (or other ranking officers) of the City of New York, County of Bronx, State of New York and upon information and belief, the defendants, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, were and still are, at all times herein mentioned, residents of the City and State of New York.

4. Upon information and belief, that all times herein, the defendants, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, were and still are employees of The City of New York Police Department as Police Officers (or other ranking officers), and were at all times herein acting within the furtherance and scope of their employment with **THE CITY OF NEW YORK**. The defendant, **CITY OF NEW YORK**, is liable and responsible for all of those acts committed by the defendants, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, pursuant to the doctrine of respondeat superior. **THE CITY OF NEW YORK** expressly and implicitly condoned all of the actions of **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, set forth herein and hereinafter.

5. Upon information and belief, **THE CITY OF NEW YORK** at all times herein, condoned all of the acts of the defendants, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, as herein and hereinafter set forth.

6. Upon information and belief, each and all of the acts of the defendants alleged herein were done by defendants, and each of them, both as individuals, and under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York, City of New York and the County of New York, and under the authority of their office as Police Officers for New York City.

7. Upon information and belief, that on or about September 13, 2023 at approximately 1:15 a.m. on the sidewalk of 181st Street near and about Grand Concourse, City and State of New York, County of Bronx, although the plaintiff was lawfully and properly at said location, he was forcibly, violently and unlawfully, stopped, grabbed, punched multiple times, kicked, slammed onto the ground and then handcuffed in a demeaning manner and assaulted and battered in front of the public, threatened and illegally placed under arrest and imprisoned by the defendants, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, working for and on behalf of **THE CITY OF NEW YORK**. During the above incident, the

above officers struck, punched and kicked plaintiff and slammed his head onto the cement.

8. Upon information and belief the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, unlawfully accused the plaintiff, **MALIK DIXON**, of crimes and violations and the defendants became abusive toward the plaintiff without any justification and said accusations were completely false and plaintiff was unlawfully placed under arrest.

9. Upon information and belief, the plaintiff, **MALIK DIXON**, was held, under arrest, and imprisoned from approximately September 13, 2023 at approximately 1:15 a.m. through September 17, 2023 at approximately 7:00 p.m.

10. Upon information and belief, during the time the plaintiff was unlawfully held at the aforesaid location, St. Barnabas Hospital, 46th Precinct of the New York City Police Department, Lincoln Hospital (and while in the aforesaid hospitals, plaintiff was shackled and handcuffed to the bed) and Central Booking, plaintiff was otherwise forced to undergo great emotional and mental anguish and physical harm, and loss of liberty and freedom and was kept and imprisoned in handcuffs and, upon information and belief, subjected to a humiliating strip search.

11. Upon information and belief, that on September 17, 2023 at approximately 7:00 p.m., the plaintiff was released and advised that he was free to go.

12. Upon information and belief, all criminal charges pressed against the plaintiff in connection with, or in support of the arrest, search, seizure and imprisonment to which plaintiff was subject as set forth herein were dismissed.

13. Prior to the commencement of this action, on the 31st day of October, 2023 a Notice of Claim was duly served herein on the defendant and, thereafter, on the 20th day of February, 2024 the defendant conducted a 50h Hearing. That more than thirty days has expired since the filing of the Notice of Claim and the defendant has failed and refused to adjust the claim. This action is timely brought.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST THE DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW
YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE
OFFICER JOHN DOE # 3 ON BEHALF OF PLAINTIFF, MALIK DIXON**

14. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "13", above as if fully set forth herein.

15. Upon information and belief, on or about September 13, 2023 at approximately 1:15 a.m. on the sidewalk of 181st Street near and about Grand Concourse, City and State of new York, County

of Bronx, while the plaintiff was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, approached the plaintiff, detained him and began to assault and batter the plaintiff. This was conducted in a violent and abusive manner during the course of which defendant probed and handcuffed and verbally and physically and assaulted, battered, punched, kicked and abused plaintiff with the intent and purpose of harming, humiliating and embarrassing plaintiff in the presence of the public generally, and particularly, the people present at the scene.

16. Upon information and belief, after searching plaintiff's person, which search did not reveal any incriminatory or dangerous articles defendant continued to detain plaintiff, in handcuffs, at the above location and thereafter at St. Barnabas Hospital, the 46th Precinct of the New York City Police Department, Lincoln Hospital and Central Booking, Bronx, New York.

17. Upon information and belief, plaintiff was held at the above locations and imprisoned therein, and detained, from approximately September 13, 2023 at approximately 1:15 a.m. through September 17, 2023 at approximately 7:00 p.m. Said imprisonment and confinement was all without probable cause or

justification and was all precipitated by the unlawful and improper charges and actions of the New York City Police Department and their employees and said actions of defendants were done intentionally and with malice.

18. Upon information and belief, all criminal charges pressed against plaintiff in connection with, or in support of the arrest, search, seizure, and imprisonment to which plaintiff was subjected as set forth herein and said confinement was, at all times, against the will of the plaintiff. That plaintiff was aware of said imprisonment and confinement and did not consent thereto. The confinement and imprisonment was not privileged.

19. Upon information and belief, said confinement and imprisonment was without probable cause, was improper and without justification and the plaintiff, **MALIK DIXON**' movements were restricted.

20. This confinement, imprisonment and restriction of the plaintiff's movement was against his will and plaintiff was aware of said confinement, restriction and imprisonment.

21. Upon information and belief, by the reason of the aforesaid **FALSE IMPRISONMENT** of the plaintiff, **MALIK DIXON**, by the defendants, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of freedom, loss of time, loss of enjoyment of life, and is entitled

to punitive damages, against, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3, and was otherwise injured an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, , NEW YORK CITY POLICE OFFICER JOHN DOE # 1,
NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY
POLICE OFFICER JOHN DOE # 3 ON BEHALF OF PLAINTIFF, MALIK DIXON**

22. Plaintiff repeats, reiterates and realleges each and every allegation number "1" through "21" above, as if fully set forth herein.

23. Upon information and belief, on or about September 13, 2023 at approximately 1:15 a.m. on the sidewalk of 181st Street near and about Grand Concourse, City and State of New York, County of Bronx, while the plaintiff was lawfully and properly sitting on park benches at said location, the defendant, CITY OF NEW YORK, by and through their employees, defendants, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3, did falsely arrest the plaintiff.

24. Upon information and belief, at all times herein, the defendants, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3, did assert proper legal authority

to detain and arrest the plaintiff, and the plaintiff reasonably believed that the defendants did have the power to hold him against his will.

25. Upon information and belief, said arrest was without probable cause, improper and without justification, and the plaintiff, **MALIK DIXON's**, movement was restricted and confined.

26. Upon information and belief, the aforesaid arrest and restriction of plaintiff's movements was against his will and plaintiff was aware of said arrest and restrictions and confinement against his will.

27. Upon information and belief, said arrest was improper, unlawful and without proper justification and without probable cause.

28. Upon information and belief, at all times herein, the aforesaid false arrest by the defendants was made with malice and the defendants did intend to falsely arrest the plaintiff.

29. Upon information and belief, by reason of the **FALSE ARREST** of the plaintiff, **MALIK DIXON**, by the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, the plaintiff sustained physical, mental and emotional injuries, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life and is entitled to punitive damages

against NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3, and was otherwise damaged all an amount exceeding the jurisdictional limits of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW
YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE
OFFICER JOHN DOE # 3 ON BEHALF OF PLAINTIFF, MALIK DIXON**

30. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "29", above as if fully set forth hereinafter.

31. Upon information and belief, the defendant, CITY OF NEW YORK, owed a duty to the general public to sufficiently train and educate their police officers.

32. Upon information and belief, the aforesaid police officers, defendants, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3, were not sufficiently trained and experienced in carrying out their duties as New York City Police Officers. In addition, upon information and belief, the defendant, CITY OF NEW YORK, was further negligent in hiring and retaining NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3, as employees despite having actual and or constructive notice that said

employees were unfit and not qualified to carry out their duties as Police Officers, and possessed violent propensities.

33. Upon information and belief, that **THE CITY OF NEW YORK** was negligent, careless and reckless in not sufficiently training their police officers and that all of the aforesaid defendants did not perform a proper investigation before committing the aforesaid conduct, and in negligently hiring and retaining defendants, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, and the defendants were otherwise negligent.

34. That as a direct and proximate result of the defendant, **THE CITY OF NEW YORK's** negligence, including, but not limited to: Their failure to properly and adequately train their police officers, and of the negligence of the defendants, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, all of the aforesaid tortious conduct was committed upon the plaintiff causing him serious and severe physical and emotional injuries.

35. By reason of the aforesaid **NEGLIGENCE** of defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, the plaintiff, **MALIK DIXON**, did suffer shock, mental distress, emotional stress, material loss, emotional

damages, loss of esteem, humiliation, loss of enjoyment of life, loss of liberty, loss of time and physical damage, all in an amount exceeding the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3 ON BEHALF OF PLAINTIFF, MALIK DIXON

36. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "35", above as if fully set forth hereinafter.

37. Upon information and belief, during all the times herein, the individual defendants, and each of them, separately and in concert, acted under the cover of law and statutes, ordinances, regulations, customs and usages of the State of New York, County of Bronx, City of New York.

38. Upon information and belief, each of the defendants, separately and in concert engaged in illegal conduct herein before and herein after mentioned to the injury of the plaintiff and deprived plaintiff of the rights, privileges and immunities, secured to the plaintiff by the constitution of the United States, and Federal Laws of the United States. The defendants, in imprisoning and arresting and physically assaulting and battering the plaintiff deprived the plaintiff of his constitutional rights and annuities secured by the United States Constitution and freedom

from illegal seizure, illegal search, fear from legal detention, coercion and intimidation, and freedom from illegal and unjustified assault and battery, all secured by the Constitution of the United States and 42 United States Code Section 1983. The defendants acted knowingly and purposely with the specific intention to deprive the plaintiff of his aforementioned rights.

39. Upon information and belief, the actions and conduct described herein by **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, and the New York City Police Department constituted and demonstrates an official unconstitutional policy and custom of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, constituted a continuing pattern of abuse and misconduct by the New York City Police Department, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, and said misconduct and official unconstitutional policy caused plaintiff to be subjected to and deprived his constitutional rights.

40. Upon information and belief, at all times herein, the defendant, **CITY OF NEW YORK**, condoned the above unconstitutional conduct by its police officers as is demonstrated and documented

by the substantial and reoccurring amount of 42 USC § 1983 claims filed against the **CITY OF NEW YORK** and this official New York City unconstitutional pattern of behavior has been demonstrated on several occasions by both the New York City Police and other investigations and the above actions by the New York City Police Department Police Officers.

41. Upon information and belief, as a direct and proximate result of the aforesaid, the plaintiff suffered physical and mental injuries and anguish, public scorn, humiliation, loss of esteem, loss of liberty, loss of time, loss of enjoyment of life, and the plaintiff was otherwise damaged, all in an amount exceeding the jurisdictional limits of all lower Courts.

42. Plaintiff hereby demands compensation and punitive damages together reasonable attorney's fees pursuant to 42 United State Code Section 1983 and other Civil Rights Statutes.

AS AND FOR FIFTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW
YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE
OFFICER JOHN DOE # 3 ON BEHALF OF PLAINTIFF, MALIK DIXON

43. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "42", above as if fully set forth hereinafter.

44. Upon information and belief, on or about September 13, 2023 at approximately 1:15 a.m. on the sidewalk of 181st Street

near and about Grand Concourse, City and State of New York, County of Bronx, while the plaintiff was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, civilly assaulted the plaintiff, **MALIK DIXON**, including, but not limited to, punching and kicking plaintiff multiple times, handcuffing plaintiff, slamming plaintiff's head into the cement.

45. Upon information and belief, at all times herein, the defendant, **CITY OF NEW YORK**, and the defendants, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, placed the plaintiff, **MALIK DIXON**, in imminent fear of violent contact.

46. Upon information and belief, the defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3**, acts were intentional and made with malice all against the plaintiff, **MALIK DIXON**.

47. Upon information and belief, at all times herein, the plaintiff was aware of the defendants' actions, and the plaintiff was aware of the fear and threat of the imminent offensive violent contact.

48. Upon information and belief, by reason of **CIVIL ASSAULT** of the plaintiff, **MALIK DIXON**, by the aforesaid defendants, **CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3, MALIK DIXON**, sustained personal injury, physical, mental and emotional injuries and plaintiff demands punitive damages and was otherwise damaged in an amount exceeding the jurisdictional limits of all lower Courts and demands punitive damages against **NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3.**

**AS AND FOR A SIXTH CAUSE OF ACTION AGAINST DEFENDANTS
CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW
YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE
OFFICER JOHN DOE # 3 ON BEHALF OF PLAINTIFF, MALIK DIXON**

49. Plaintiff repeats, reiterates and realleges each and every allegation numbered "1" through "48", above as if fully set forth hereinafter.

50. Upon information and belief, on or about September 13, 2023 at approximately 1:15 a.m. on the sidewalk of 181st Street near and about Grand Concourse, City and State of New York, County of Bronx, while the plaintiff was lawfully and properly at said location, the defendant, **CITY OF NEW YORK**, by and through their employees, defendants, **NEW YORK CITY POLICE OFFICER JOHN DOE # 1,**

NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3, civilly battered the plaintiff, MALIK DIXON, including, but not limited to, violently grabbing plaintiff and physically striking and punching plaintiff several times in the face, kicking plaintiff, slamming plaintiff's head into the cement and did place handcuffs on excessively tight for an unreasonable and extensive amount of time and plaintiff was handcuffed and shackled to at and from the hospitals described herein.

51. That at the aforesaid time and place the defendant, CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3, did batter the plaintiff by subjecting the plaintiff, MALIK DIXON, to offensive bodily conduct and conducting an improper, unnecessary and illegal and search of plaintiff.

52. Upon information and belief, the plaintiff, MALIK DIXON, never consented to said contact, nor was said contact justified or privileged.

53. Upon information and belief, the aforesaid battery by the defendants upon the plaintiff was made intentionally and with malice, all against the plaintiff's will, and the plaintiff was fully aware of said battery.

54. Upon information and belief, by reason of the CIVIL BATTERY of the plaintiff, MALIK DIXON, by the defendants, CITY OF

NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3, the plaintiff, MALIK DIXON, sustained serious and severe personal, physical, mental and emotional injuries, and plaintiff demand punitive damages, and was otherwise damaged all in an amount exceeding the jurisdictional limits of all lower Courts and plaintiff demands punitive damages against NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally, in an amount exceeding the jurisdictional limits of all lower Courts on the First Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Second Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Third Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Fourth Cause of Action and in amount exceeding the jurisdictional limits of all lower Courts on the Fifth Cause of Action and in an amount exceeding the jurisdictional limits of all lower Courts on the Sixth Cause of Action, plus punitive damages against defendants, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE OFFICER JOHN DOE # 3, in the amount exceeding the

jurisdictional limits of all lower Courts together with costs, interest and disbursements of this action, and together with such other and further relief as to this Court may seem just and proper.

Dated: Bronx, New York
May 30, 2024

Yours, etc.



Mitchell Franzblau, Esq.
BELOVIN FRANZBLAU & ASSOCIATES, PC
Attorneys for Plaintiff(s)
1937 Williamsbridge Road, 2nd Floor
Bronx, New York 10461
(718) 655-2900

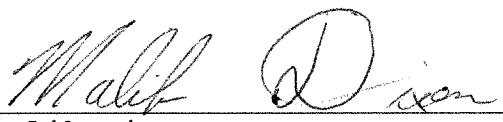
VERIFICATION

State of New York)

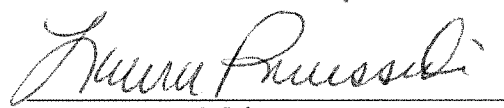
ss:

County of Bronx)

Malik Dixon, being duly sworn, deposes and says: That (s)he is the plaintiff in these proceedings; that (s)he has read and knows the contents of the above VERIFIED COMPLAINT and that the same is true to her/his own knowledge except as to the matters therein stated to be alleged upon information and belief, as to those matters, (s)he believes them to be true.


Malik Dixon

Sworn to before me on
May 30, 2024


Notary Public

LAURA PANISSIDI
NOTARY PUBLIC, STATE OF NEW YORK
NO. 01PA5017882
QUALIFIED IN BRONX COUNTY
COMMISSION EXPIRES SEPTEMBER 13, 2025

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

=====

MALIK DIXON,

Plaintiff(s),

-against-

**CITY OF NEW YORK, NEW YORK CITY POLICE OFFICER JOHN DOE # 1, NEW
YORK CITY POLICE OFFICER JOHN DOE # 2 and NEW YORK CITY POLICE
OFFICER JOHN DOE # 3,**

Defendant(s).

SUMMONS AND VERIFIED COMPLAINT

Belovin Franzblau & Associates, PC
Attorneys for Plaintiff(s)
1937 Williamsbridge Road
2nd Floor, Suite B
Bronx, NY 10461
718-655-2900

TO: